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ITEM WISE EDITORIAL ... 30th July, 2019



THIRD PARTY MEDIATION ON KASHMIR ISSUE... WHY BIG NO?

UPSC CSE – GS II

International Relations



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... DISCUSSION

30th JULY, 2019

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Why does India say no to Kashmir mediation?

What are the historical reasons why third party mediation is avoided by the government? Will the status quo in Indian Kashmir policy remain unaltered?

The news earlier this month that President Donald Trump suggested that the United States should play a role in mediating the Kashmir dispute was widely reported in the Indian media. The suggestion was seen as a major shift in the Indian government's long-standing policy of opposing third party mediation in the Kashmir issue. The Indian government has consistently maintained that the Kashmir issue is an internal matter and should be resolved through bilateral talks between India and Pakistan.

What is the historical context of the Indian position?

In 1947, when the British announced the partition of India, the Kashmir issue was one of the most contentious. The British had left behind a large number of princely states, and the fate of these states was to be decided by the Indian and Pakistani governments. Kashmir was one of these states, and its accession to either India or Pakistan was a matter of great importance.

At the time, the Indian government was in a weak position, and it was clear that it would have to accept the accession of Kashmir to Pakistan. However, the Indian government was not willing to do so, and it was this refusal that led to the outbreak of the Kashmir conflict.

Since then, the Indian government has consistently maintained that the Kashmir issue is an internal matter and should be resolved through bilateral talks between India and Pakistan. This position has been a cornerstone of Indian policy on Kashmir, and it has been a major factor in the Indian government's refusal to accept third party mediation.

There are several reasons why the Indian government has maintained this position. One of the main reasons is the historical context of the Kashmir issue. The Indian government has always been aware of the fact that the Kashmir issue is a highly sensitive one, and it has always been careful not to let it become a major international issue.

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Prime Minister Narendra Modi with President Donald Trump in the White House, Washington, D.C., in May 2017.

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28th July, 2019

A straightforward lesson on resolution

By not sorting out conflicts between themselves, India and Pakistan are effectively outsourcing the



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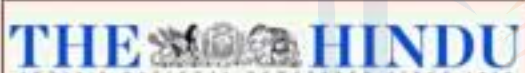
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30th July, 2019

UPSC CSE – GS II

GS II ... International Relations

India and its neighborhood- relations.

DRAFT QUESTION

Examine the reasons why India is against any mediation on Kashmir issue.

AND

In Post-Independent India, mediation efforts to resolve Kashmir issue ended in failure. Discuss.

110 Why does India say no to Kashmir mediation?

What are the historical reasons why third party mediation is avoided by the government? Will the status quo on India's Kashmir policy remain?

The story so far: On Monday, U.S. President Donald Trump claimed that Prime Minister Narendra Modi had sought mediation in Kashmir when they met during the G-20 summit in Osaka. In Parliament, External Affairs Minister S. Jaishankar categorically said that Mr. Modi did not request Mr. Trump to “mediate or arbitrate” on the Kashmir issue. He said India remains committed to discussing all issues with Pakistan bilaterally.

What is the backstory on the U.S. offer of mediation?

In 1993, the new administration of U.S. President Bill Clinton decided to wade into the Kashmir issue, indicating repeatedly that it wished to mediate between India and Pakistan. At the UN General Assembly in September, Mr. Clinton referred to resolving “civil wars from Angola to the Caucasus to Kashmir,” and a month later, the U.S. Assistant Secretary of State Robin Raphel questioned the validity of Kashmir's ‘Instrument of Accession’ during a press briefing. At a recent event, the Union Minister for Housing and Urban Affairs, Civil Aviation (and Minister of State, Commerce and Industry), Hardeep Puri, recounted how India issued a strong protest. Mr. Puri was then the Joint Secretary (Americas), and made the call to an official in Washington with a carefully but strongly worded message cleared by Prime Minister P.V. Narasimha Rao. Mr. Puri said, “We read the riot act to the U.S. administration that time, and succeeded remarkably in drawing a red line on the issue [of mediation].”

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In fact, until Mr. Trump dropped a bombshell during his joint press appearance with Pakistan Prime Minister Imran Khan on Monday, where he claimed that Mr. Modi had asked him to “mediate or arbitrate” on Kashmir, no U.S. leader has publicly crossed that line in 25 years. Responding to a swift and angry denial from the Ministry of External Affairs, the U.S. State Department seemed to backtrack from the allegation by saying that Kashmir remains a “bilateral issue”, but maintained that the U.S. “stands ready to assist” any India-Pakistan talks.

Why does India refrain from taking help?

India’s firm position against mediation on Kashmir or any other issue stems from several reasons, most notably a historical suspicion, since the 1950s and 1960s, as mediated talks by the United Nations and World Bank, the United States, the United Kingdom and Russia have been unsuccessful in resolving the issues between India and Pakistan. At best, the attempts have worked for diffusing tensions, or calling off hostilities at the Line of Control and the International Border, but not in terms of their rival claims over Jammu and Kashmir. Another reason is that India sees itself as a regional leader, and does not require any assistance in sorting out its issues with other regional countries. In addition, the widespread belief is that mediation favours the weaker party by levelling the playing field, and with its stronger conventional and non-conventional military prowess, India has seen no significant gain from bringing a third-party into its 70-year-old conflict with Pakistan.

When did the UN try to mediate?

The early attempts at mediation by the UN were made after India took its complaint against Pakistan’s forced occupation of parts of Kashmir (PoK) to the UN Security Council on January 1, 1948.

110 Why does India say no to Kashmir mediation?

The UN then set up the United Nations Commission for India and Pakistan (UNCIP) which proposed mediating a resolution along a three-point action plan: Pakistani demilitarisation of the Kashmir region, followed by Indian reduction in military presence, and a proposed final resolution by an impartial U.N. administered plebiscite to “determine the wishes of the Kashmiri people”. The deal never got off the ground as Pakistan never agreed to demilitarise, and India under Prime Minister Jawaharlal Nehru made it clear that a plebiscite would never be accepted. Where the UNCIP was successful was in mediating a ceasefire in 1949, and negotiating the geographical location of the cease-fire line which would be monitored by the United Nations Military Observer Group In India and Pakistan (UNMOGIP). Individual U.N. representatives continued to visit both sides from 1949 to 1953 but failed to improve the atmosphere for a resolution, or to convince either side to demilitarise the two sides of the LoC. The first United Nations Representative for India and Pakistan (UNRIP) appointed to mediate the dispute was Sir Owen Dixon, an Australian jurist, who was followed by Frank Graham, an American diplomat, who gave up after his proposal was rejected by New Delhi and Karachi (then the capital of Pakistan) in April, 1953. The only exceptions to this dismal record were the 1960 World Bank guaranteed Indus Water Treaty, and a territorial agreement on the Rann of Kutch, mediated successfully by the British government in 1965. Soviet Premier Kosygin also moderated between Prime Minister Lal Bahadur Shastri and Pakistani President Ayub Khan to broker the 1965 Tashkent peace agreement, but the treaty has always been marked by suspicion and doubts, tainted by Shastri’s sudden death at Tashkent.

110 Why does India say no to Kashmir mediation?

What about the U.S.?

A particularly bitter episode for India came from mediation attempts by the U.S. and the U.K. after the 1962 Sino-Indian war. The U.S. had provided India with planes and military hardware worth about \$60 million during the war, and the price, said American officials, was that India should agree to mediated talks with Pakistan on Kashmir.

Says Ashoka University Professor Rudra Chaudhuri (author of *Forged in Crisis: India and the United States since 1947*, and also the director of Carnegie India), "The mediation was accepted because Nehru was in shock after the defeat to China, and the U.S. made it clear that any further military assistance was contingent on India's cooperation on Kashmir talks."

On November 21, 1962, the day the war ended, a team of 24 American negotiators headed to India, led by U.S. Assistant Secretary of State Averell Harriman. They worked, along with U.S. Ambassador John Kenneth Galbraith and British High Commissioner Paul Gore-Booth to bring India to the table for six rounds of talks between Foreign Minister Swaran Singh and Pakistan Foreign Minister Zulfikar Ali Bhutto. Eventually, however as India regained its confidence, the talks floundered, and ended in 1963 after Nehru made it clear that India would never give up the Kashmir Valley.

Will India remain opposed to mediation?

After winning the war with Pakistan that saw the creation of Bangladesh, India, in 1972, negotiated the Simla Agreement, which did away with any idea of future mediation between the two countries. According to the Agreement signed on July 2, 1972 by Indira Gandhi and by then President Zulfikar Ali Bhutto, the two countries "resolved to settle their differences by peaceful means through bilateral negotiations or by any other peaceful means mutually agreed upon between them".

110 Why does India say no to Kashmir mediation?

In February 1999, the Lahore declaration signed by Nawaz Sharif and Atal Behari Vajpayee also affirmed the bilateral nature of issues and their resolution. Thus, even when Mr. Trump spoke this week, India's response, in Parliament, was to invoke the Shimla Agreement and the Lahore Declaration saying that they "provide the basis to resolve all issues between India and Pakistan bilaterally". These bilateral efforts are at an end at present, and little has moved since the last negotiations on Kashmir in 2003-2008, when Indian and Pakistani negotiators discussed the four-step formula. India has maintained its opposition to third-party mediation, however, and despite offers from several leaders including South African President Nelson Mandela, UN Chief António Guterres, and more recently, the Norwegian Prime Minister, Erna Solberg, has said, "thanks, but no thanks".

110 A straightforward lesson on resolution

By not sorting out conflicts between themselves, India and Pakistan are effectively outsourcing the role to third parties. U.S. President Donald Trump's claim last Monday that Prime Minister Narendra Modi had asked him at the G-20 summit in June in Japan to mediate between India and Pakistan on the Kashmir question may, for the moment, have been deftly handled by the two foreign policy establishments, but this is not a question that is likely to go away all too easily. Given that Mr. Trump made this rather out-of-the-blue statement during Pakistan Prime Minister Imran Khan's visit to the United States, it has fuelled further speculation about what it implies.

A mixed bag

To be fair to the Indian establishment's traditional logic, third party mediation in Jammu and Kashmir might not be a useful idea simply because third parties typically come with their own agenda. Second, it might do more harm than good in an age of hypernationalism and frenzied media attention on anything to do with Kashmir. In a milieu where bilateral diplomacy on Jammu and Kashmir itself comes under intense scrutiny from domestic political forces, third party mediation is almost impossible to even consider. More so, past instances of third party mediation have had mixed results.

And yet, Kashmir is likely to be on the great power radar and will continue to attract international attention for a variety of reasons, not least because New Delhi refuses to invest in bilateral diplomatic measures to resolve Jammu and Kashmir.

110 A straightforward lesson on resolution

Simla and after

Historically, New Delhi has had a love-hate relationship with third party mediation in Jammu and Kashmir in 1948. However, much of this overt third party intervention in Kashmir ended with the Simla agreement of 1972 which stated, at New Delhi's insistence, that Kashmir will be a bilateral issue thereby ending the United Nations Military Observer Group in India and Pakistan's (UNMOGIP's) peacekeeping work in Kashmir, de facto, if not de jure. The current UNMOGIP involvement in Kashmir is neither encouraged nor recognised by India, something Pakistan continues to do. New Delhi believes that its UN experience vis-à-vis Kashmir has been an unsavoury one which partly explains the current distaste in India for any third party mediation. Then there is India's status-linked indifference to external opinion that comes with being a major economy and military power whose deep pockets and growing markets are of significance to those potentially desirous of talking about Kashmir. So theoretically, New Delhi has consistently, and successfully, blocked all third party mediation in Kashmir, except when it wants to let others play a role. And if anyone indeed makes a reference to Kashmir which New Delhi disagrees with, it either ignores it or strongly disapproves of it.

That is, in practice, there has historically been a great deal of third party attention on the larger Kashmir question some of which has been encouraged by India.

In order to understand this argument better, let us make a conceptual distinction between conflict resolution and crisis management. While both involve some amount of mediation, the former is focussed on a specific issue — Kashmir in this case — and seeks to address and resolve the root causes of the conflict. The latter involves mediation during an ongoing crisis with a potential for escalation. Crisis mediation unlike conflict resolution does not seek to resolve the political or root causes of a conflict.

110 A straightforward lesson on resolution

Management and resolution

New Delhi has traditionally been averse to mediation in the form of conflict resolution while accepting more than once third party mediation during crisis events. Kargil is an example when India accepted third party mediation by the Clinton Administration in the U.S. This was also evident during the post-Pulwama military stand-off in February this year. While both Kargil and the February stand-off were directly linked to Kashmir, mediation by the third party did not seek to address anything beyond the immediate diffusion of tensions. Then there are other instances where third party crisis mediation took place even though they had no direct links to Kashmir such as the post-26/11 terror attacks.

For sure, crisis management is different from conflict resolution. And yet even when the focus is on crisis management, the larger conflict, which has given rise to the crisis comes into focus and become part of the conversations between the mediator and the conflicting parties. This is precisely what seems to underlie the current American interest vis-à-vis Kashmir. So even though New Delhi accepts crisis management, and not conflict resolution in the context of Kashmir, it is not easy to separate the two either during a crisis or when the conflict is crisis prone.

Put differently, given that crisis, at least in this context, is the function of a pre-existing conflict, crisis management by third parties and the attendant focus on the broader conflict is not easy to avoid.

More so, while New Delhi is loathe to having third party discussions on Kashmir, especially on the human rights situation, it actively seeks third party attention on terror emanating from Pakistan as well as the latter's sponsorship of violence in the Valley. While this might be a desirable distinction to New Delhi's mind, it is not easy to get a third party to focus on one part of the problem and ignore the other.

110 A straightforward lesson on resolution

In other words, New Delhi's efforts at getting other countries to condemn Pakistan's sponsorship of terrorism in Kashmir while at the same time disparaging the reports of the Office of the United Nations High Commissioner for Human Rights (OHCHR) on the human rights situation in Kashmir is a difficult balance to maintain.

Impact of regional geopolitics

The unfolding developments in regional geopolitics could also have implications for third party interest in Kashmir. The U.S.'s desire for a deal with the Taliban in Afghanistan, in which Pakistan is key, is already beginning to have an impact on the frosty relationship between Washington and Islamabad. Besides Washington, Beijing, and Moscow, the European capitals will also eventually start courting Pakistan. This will invariably increase, albeit marginally, the global focus on Kashmir either at Pakistan's insistence or because third parties might see a link between Kashmir and regional instability. As a matter of fact, several people have in the past made a direct link between instability in Afghanistan and the Kashmir conflict. Such voices could potentially become sharper now. More so, if the rising concerns about the Islamic State's influence in Kashmir turn about to be not-so-misplaced, the heat on Kashmir is only going to increase.

What further ensures third party involvement in Kashmir is the lack of a conflict resolution process between India and Pakistan. The less the two sides talk on Kashmir, the more there is are likely to be crisis situations between them which would invariably lead to more third party involvement in the whole Kashmir quagmire. In other words, by not resolving conflicts between themselves, India and Pakistan are effectively outsourcing crisis management, and thereby conflict resolution, albeit in a limited manner, to third parties. The lesson then is a straightforward one: if you do not engage in a dialogue with Pakistan to resolve the Kashmir issue, third parties will continue to meddle.

Happymon Jacob teaches at the Jawaharlal Nehru University, and is the author of 'Line on Fire: Ceasefire Violations and India-Pakistan Escalation Dynamics'



WHY THE ISSUE OF MEDIATION IS INTO THE NEWS?



- US President claimed that the Prime Minister Narendra Modi has sought mediation in Kashmir, when they met during the G20 Summit in Osaka.
- India categorically said that Mr. Modi did not request Mr. Trump to mediate or arbitrate on the Kashmir issue.
- India remains committed to discussing all issues with Pakistan bilaterally.

A SLICE INTO HISTORY!



- 1 Early attempts at mediation by UN were made after India took its complaint against Pakistan's forced occupation of parts of Kashmir (PoK) to the UN Security Council on January 1, 1948.

- 2 UN then set up the United Nations Commission for India and Pakistan.

- 3 It proposed mediating a resolution along three-point action plan:
 - Pakistani demilitarization of the Kashmir region.
 - Followed by India's reduction in military presence.
 - Proposed final resolution by an impartial UN administered plebiscite to determine the wishes of the Kashmiri people.

The deal never agreed as Pakistan never agreed to demilitarize and India under Prime Minister Jawaharlal Nehru made it clear that a plebiscite would never be accepted.

WHAT HAPPENED SUBSEQUENTLY?



UNMOGIP

1 UNCIP was successful in mediating a cease-fire in 1949, and negotiating the geographical location of the cease-fire line, which would be monitored by the United Nations Military Observer Group In India and Pakistan (UNMOGIP).

2 Individual U.N. representatives continued to visit both the sides from 1949 to 1953, but they failed to improve the atmosphere for a resolution, or to convince either side to demilitarize two sides of the LoC.

WHAT ABOUT THE SUCCESSES OF MEDIATION SUBSEQUENTLY?



1 In 1960, the Indus Water Treaty was brokered by the World Bank.

2 In 1965, the territorial agreement on the Rann of Kutch was mediated successfully by the British Government.

3 Soviet Premier also moderated between Prime Minister Lal Bahadur Shastri and Pakistani President Ayub Khan to broker the 1965 Tashkent peace agreement, but the treaty is marked by suspicion and doubts.

WHAT ABOUT THE MEDIATION EFFORTS IN 1962?

- 1** Bitter episode of mediation attempts by the U.S. and the U.K. came after the 1962 Sino-Indian war.
- 2** U.S. provided India with planes and military hardware worth about \$60 million during the war and the condition was that, India should agree to mediated talks with Pakistan on Kashmir.
- 3** The mediation was accepted, because Nehru was in shock after the defeat to China.
- 4** U.S. made it clear that, any further military assistance was contingent on India's cooperation on Kashmir talks.
- 5** On November 21, 1962, the day the war ended, 24 American negotiators came to India.
- 6** They along with U.K. officials tried to bring India to the table for six rounds of talks between Foreign Ministers.
- 7** The talks were ended when finally Nehru made it clear that India would never give up the Kashmir Valley.

WHY INDIA REFRAINED FROM TAKING HELP?

POINT NO: 1

- There is historical suspicion since the 1950s and 1960s as mediated talks by the United Nations and World Bank, the United States, the United Kingdom and Russia have been unsuccessful in resolving the issues between India and Pakistan.
- Yet best, the attempts have worked for diffusing tensions or calling off hostilities at the Line of Control and the International Border, but not in terms of their rival claims over Jammu & Kashmir.

POINT NO: 2

- India sees itself as a regional leader.
- It feels that it does not require any assistance in sorting out its issues with other regional countries.
- India has seen no significant gain by bringing a third-party into its 70-year-old conflict with Pakistan.



WHAT ABOUT 'SHIMLA AGREEMENT'?



Pakistan President Zulfikar Ali Bhutto and Prime Minister Indira Gandhi at the first round of talks in Shimla in 1972.

- 1 After winning the war with Pakistan that saw the creation of Bangladesh, India, in 1972, negotiated the Shimla Agreement.
- 2 It did away with the idea of future mediation between the two countries.
- 3 As per the Agreement signed on July 2, 1972 between the Indira Gandhi and the then President, Zulfikar Ali Bhutto, the two countries resolved to secure their differences by peaceful means through bilateral negotiations or by any other peaceful means mutually agreed upon between them.

WHAT ABOUT 'LAHORE DECLARATION'?



1 In February 1999, the Lahore Declaration was signed by Nawaz Sharif and Atal Behari Vajpayee.

2 They also affirmed the bilateral nature of issues and their resolution.

When Trump spoke of mediation, India's response was invoking Shimla Agreement and the Lahore Declaration saying that, they provide the basis to resolve all issues between India and Pakistan bilaterally.

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